

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-24

Southern International Co., LTD

Complainant,

v.

Daynamez Group of Companies LLC

Respondent.

RESPONDENT’S MOTION TO DISMISS

Comes Now the Respondent, Daynamez Group of Companies LLC and would respond to the Complaint by Southern International Co., Ltd filing this Motion to Dismiss and would state the following:

Introduction

1. A Complaint was served with the Federal Maritime Commission on August 26, 2025.
2. The Complaint that was filed is deficient as it does not follow a cohesive format with specific allegations in numbered paragraphs.
3. There is no jurisdiction on this matter by the Federal Maritime Commission as the Respondent was not acting as a Non-Vessel Operating Common Carrier (“NVOCC”), Ocean Freight Forwarder, or Common Carrier, so there is no jurisdiction over the Respondent. Furthermore, the contract at issue states that all actions should be filed in Vietnam.

4. The Complaint is not verified as required by the rules. It just states respectfully submitted by the company officer. It is a formal complaint, but not a verified complaint as required under 46 CFR § 502.6.

Lack of Jurisdiction

5. The basis of this claim is that the Respondent was acting as an NVOCC or an Ocean Freight Forwarder. The Complaint states that there is jurisdiction under 4 sections of the Shipping Act. 46 U.S.C. 41102(c), 46 USC 41104(2) 46 U.S.C. 41104(3) all dealing with common carriers. The fourth citation that is cited, 46 USC 41105(1), deals with a conference or 2 or more carriers. The Respondent is not a common carrier of any kind or an Ocean Freight Forwarder. There is nothing in the Complaint giving an FMC license number in order to make a credible assertion that the Respondent was a NVOCC or an Ocean Freight Forwarder. Super cargo Services Co., Ltd and Kargosmart were the NVOCCs not the Respondent and as per the exhibits attached to the Complaint, issued bills of lading that reference FMC numbers. The FMC and federal courts have made it clear that jurisdiction under the Shipping Act is functional, not merely nominal or descriptive. In *Landstar Express America Inc. v. FMC*, 569 F.3d 493 (D.C. Cir. 2009), the court ruled that even entities performing related shipping functions, such as agents of NVOCCs, were not subject to the Act unless they independently met the statutory definitions. The Court stated, “a person or entity that provides NVOCC services falls within the ambit of § 19 only when it “holds itself out to the general public to provide

transportation” and “assumes responsibility for the transportation.” Here the Respondent was only acting as a sales agent.

The Respondent would also respectfully direct the Court to the case of *A Customs Brokerage, Inc. v. Cargocare Logistics Usa, Inc. and Cargocare Logistics America, Inc.*, which was a case involving a Customs Broker in a proceeding in front of the Federal Maritime Commission under the Shipping Act of 1984. The Federal Maritime Commission ruled that neither Respondent was a NVOCC nor subject to the jurisdiction of the Federal Maritime Commission.

6. Additionally, the contract that was signed has a provision that all disputes should be decided in Vietnam as it states:

ARTICLE 10 – ARBITRATION

All disputes, controversies, or differences which may arise between the parties, out of or in relation to or in connection with this agreement, or for the breach thereof, shall be settled amicably between the parties hereto. However, should the concerned parties fail to reach a compromise, then and in that event only, the dispute, controversy or difference shall be finally settled by the Vietnam International Arbitration Centre at the Vietnam Chamber of Commerce and Industry in accordance with its Arbitration Rules.

The action in this proceeding is for damages and states that it should be brought in Vietnam. This provision was obviously agreed to by the Complainant who is a Vietnamese Company. It is believed from the Complaint that many of the witnesses are in Vietnam.

7. Venue clauses are generally enforceable in agreements. Below are the conditions for avoiding arbitration taken from the website of the Vietnam International Arbitration Centre which are as follows:

If the parties have agreed to settle a dispute through commercial arbitration, can they still file a lawsuit in court?

In the event that parties have agreed to resolve a dispute via commercial arbitration, they may still have the option to file a lawsuit in court under certain circumstances, as outlined in [Resolution 01/2014/NQ-HDTP](#). These conditions include:

- A court has nullified the arbitral award;
- Dispute settlement through arbitration is suspended;
- The agreed-upon arbitration location has ceased operations, and parties cannot reach a consensus on an alternative venue;
- The arbitrator is unable to participate in the proceedings, or the court cannot find an arbitrator agreed upon by the parties;
- The arbitrator or the arbitration center refuses to participate; or
- Parties initially agreeing to arbitration decide not to resolve the dispute through this method after a dispute has arisen.

<https://www.vietnam-briefing.com/news/commercial-arbitration-vietnam-2023.html/>

There is no reason that this should not be heard through Arbitration in Vietnam.

None of the above reasons have occurred with regard to this dispute. It is odd that the Complainant would not bring this action in the proper venue in Vietnam.

8. Federal law governs the enforceability of forum selection clauses in diversity and federal question cases. *Stewart Org., Inc. v. Ricoh Corp.*, 487 U.S. 22, 29–30 (1988). Proceedings before the Federal Maritime Commission are governed by federal law. There is a presumption of enforceability of venue clauses. See *M/S Bremen v. Zapata Off-Shore Co.*, 407 U.S. 1 (1972), in which the Supreme Court held:

“Such clauses are prima facie valid and should be enforced unless enforcement is shown by the resisting party to be ‘unreasonable’ under the

circumstances.” The forum-selection clause, which was a vital part of the towing contract, is binding on the parties unless respondent can meet the heavy burden of showing that its enforcement would be unreasonable, unfair, or unjust. Pp. 407 U.S. 8-20. A forum selection clause may be set aside if its incorporation was the product of fraud, undue influence, or overreaching bargaining power. (*Bremen*, 407 U.S. at 15) and enforcement would effectively deprive the resisting party of its day in court (*id.* at 18). As the Complainant is a Vietnamese company, it certainly would not be prejudiced by having the case resolved in Vietnam.

Another case on point is *Atlantic Marine Constr. Co. v. U.S. Dist. Ct.*, 571 U.S. 49 (2013). There the Court clarified a forum-selection clause may be enforced by a motion to transfer under §1404(a), which provides that “[f]or the convenience of parties and witnesses, in the interest of justice, a district court may transfer any civil action to any other district or division where it might have been brought or to any district or division to which all parties have consented.” Pp. 4–11. When a forum-selection clause points to a state or foreign forum, the clause may be enforced through the doctrine of *forum non conveniens*.

The claim belongs in Vietnam not in the United States.

Failure to State a Cause of Action

9. The Complaint fails to state a cause of action and is made in an inappropriate format. The Complaint is not set up in a concise form. There

are a series of lengthy rambling paragraphs. Federal Rule of Civil Procedure 8(a)(2): Requires a “short and plain statement of the claim showing that the pleader is entitled to relief. Rule 8(d)(1): Mandates that allegations must be “simple, concise, and direct.” Rule 12(b)(6): Provides for dismissal of a complaint for “failure to state a claim upon which relief can be granted.” Rule 12(e): Allows a motion for a more definite statement if a pleading is “so vague or ambiguous that the party cannot reasonably prepare a response.” The allegations are not simple as they each have several sentences. It is impossible to respond in a concise format as the allegations are not concise.

10. The case of *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) held that a complaint must contain sufficient factual matter to state a claim that is plausible on its face. Labels, conclusions, and formulaic recitations of elements do not suffice. *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007). In *McHenry v. Renne*, 84 F.3d 1172, 1177–80 (9th Cir. 1996) a dismissal where complaint was “argumentative, prolix, replete with redundancy, and largely irrelevant.”
11. Courts may dismiss complaints that are “so confused, ambiguous, vague, or otherwise unintelligible that their true substance is well disguised.” *Salahuddin v. Cuomo*, 861 F.2d 40, 42 (2d Cir. 1988). The 7th Circuit affirmed a dismissal order because the second amended complaint remained “far outside the bounds of acceptable legal writing.” “Each iteration of the complaint was generally incomprehensible and riddled with errors, making it impossible for the defendants to know what wrongs

they were accused of committing.” *Stanard v. Nygren*, 658 F.3d 792, 797 (7th Cir. 2011). These principles have been followed as recently as September 19, 2025, wherein Judge Steven D. Merryday struck a complaint, finding the Complaint in question did not follow Federal Rules of Civil Procedure, stating at the very beginning of his Order, Rule 8(a), Federal Rules of Civil Procedure, requires that a complaint include “a short and plain statement of the claim showing that the pleader is entitled to relief.” Rule 8(e)(1) helpfully adds that “[e]ach averment of a pleading shall be simple, concise, and direct.” *Trump v. New York Times Co.*, No. 8:25-cv-2487-SDM-NHA (M.D. Fla. Sept. 19, 2025), a copy of this case is being forwarded with this Motion.

12. Lastly, the Complaint at issue here is not verified as required by the Rules.

Wherefor the Respondent would request that the case be dismissed for lack of jurisdiction, failure to state a cause of action, and lack of verification.

Dated: September 23rd, 2025

CERTIFICATE OF SERVICE

I certify that on the 23rd day of September 2025, a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission’s Order of May 12, 2020.

Served to:

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Respectfully submitted,

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